

SENATE No. 877**The Commonwealth of Massachusetts**

PRESENTED BY:

Robyn K. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote an enhanced care worker minimum wage.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>1/23/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/27/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>1/29/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>1/30/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>1/30/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/31/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/31/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/3/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/7/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/11/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>2/14/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>2/27/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>3/3/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/18/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/20/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>3/24/2025</i>

<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/5/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/7/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>1/9/2026</i>

SENATE No. 877

By Ms. Kennedy, a petition (accompanied by bill, Senate, No. 877) of Robyn K. Kennedy, Paul W. Mark, James B. Eldridge, John F. Keenan and other members of the General Court for legislation to promote an enhanced care worker minimum wage. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 763 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote an enhanced care worker minimum wage.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 19A of the General Laws is hereby amended by adding after
2 Section 4D the following new section:-

3 Section 4E: In establishing rates of payment for homemaker and personal care
4 homemaker services pursuant to the second paragraph of section 13C of chapter 118E of the
5 M.G.L. and in implementing such rate regulations, the executive of office shall require that the
6 minimum wage paid to employees of home care agencies providing such services shall be no less
7 than \$25 per hour in the first rate year and that such minimum wage shall be adjusted by the rate
8 of inflation for each subsequent rate year. Such adjusted minimum wage rate shall be calculated
9 to the nearest cent using the consumer price index for urban wage earners and clerical workers or
10 a successor index, for the 12 months prior to each rate year as calculated by the United States

department of labor. When establishing rates of payment for homemaker and personal care homemaker services, the executive office shall adjust such rates to ensure that the rates fully account for the cost to providers of paying such enhanced minimum wage. Nothing in this section shall be construed as limiting consideration of other governmental mandates or operating costs that affect the cost of providing services pursuant to section 4 of chapter 19A of the General Laws.

SECTION 2. Section 13C of Chapter 118E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following new paragraph:-

In establishing such rates of payment pursuant to the second paragraph of this section and in implementing rate regulations, the executive office shall require that the minimum wage paid to employees of social service program providers receiving such payments shall be no less than \$25 per hour in the first rate year and that such minimum wage shall be adjusted by the rate of inflation for each subsequent rate year. Such adjusted minimum wage rate shall be calculated to the nearest cent using the consumer price index for urban wage earners and clerical workers or a successor index, for the 12 months prior to each rate year as calculated by the United States department of labor. When establishing rates of payment for social service programs, the secretary of the executive office shall adjust such rates of payment to ensure that the rates fully account for the cost to providers of paying such enhanced minimum wage.

SECTION 3. The executive office of health and human services shall complete the processes above and file for emergency adoption of such amended regulations no later than 180 days after passage of this Act.